

HOUSE No. 963

The Commonwealth of Massachusetts

PRESENTED BY:

Richard M. Haggerty

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act further defining an environmental justice population.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Richard M. Haggerty</i>	<i>30th Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 963

By Representative Haggerty of Woburn, a petition (accompanied by bill, House, No. 963) of Richard M. Haggerty relative to further defining an environmental justice population. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 824 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act further defining an environmental justice population.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 62 of chapter 30 is hereby amended by striking out the definition of
2 “Environmental justice population”, as appearing in section 56 of chapter 8 of the acts of 2021,
3 and inserting in place thereof the following definition:-

4 “Environmental justice population”, a neighborhood that meets 1 or more of the
5 following criteria: (i) the annual median household income is not more than 65 per cent of the
6 statewide annual median household income; (ii) minorities comprise 40 per cent or more of the
7 population; (iii) 25 per cent or more of households lack English language proficiency; (iv)
8 minorities comprise 25 per cent or more of the population and the annual median household
9 income of the municipality in which the neighborhood is located does not exceed 150 per cent of
10 the statewide annual median household income; or (v) the neighborhood is located within ½

11 mile of a site which is or has previously been designated a Superfund site as defined by 42 USC
12 § 1397h(c)(5); provided, however, that for a neighborhood that does not meet said criteria, but a
13 geographic portion of that neighborhood meets at least 1 criterion, the secretary may designate
14 that geographic portion as an environmental justice population upon the petition of at least 10
15 residents of the geographic portion of that neighborhood meeting any such criteria; provided
16 further, that the secretary may determine that a neighborhood, including any geographic portion
17 thereof, shall not be designated an environmental justice population upon finding that: (A) the
18 annual median household income of that neighborhood is greater than 125 per cent of the
19 statewide median household income; (B) a majority of persons age 25 and older in that
20 neighborhood have a college education; (C) the neighborhood does not bear an unfair burden of
21 environmental pollution; and (D) the neighborhood has more than limited access to natural
22 resources, including open spaces and water resources, playgrounds and other constructed outdoor
23 recreational facilities and venues.